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ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
05/05/2025
Clerk of the Court
BY: SANDRA SCHIRO
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

GREGORIO GARCIA, an individual,

Plaintiff,

v.

GENERAL MOTORS LLC, a Delaware Limited Liability Company, and DOES 1 through 10, inclusive,

Defendants.

CASE NO.: CGC-24-614473

ASSIGNED TO:
Honorable Rochelle C. East
Department 206

SEPARATE STATEMENT OF UNDISPUTED FACTS SUPPORTING GENERAL MOTORS LLC'S MOTION FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, FOR SUMMARY ADJUDICATION

[Filed Concurrently with Notice of Motion; Memorandum of Points and Authorities; Declaration of Cameron Major; Declaration of Bryan Jensen; Documentary Evidence in Support of Motion of General Motors LLC for Summary Judgment or, alternatively, for Summary Adjudication; and [Proposed] Order]

Date: July 29, 2025
Time: 9:00 AM
Dept.: 301

Filing Date: May 8, 2024
Trial Date: September 15, 2025

General Motors LLC ("GM") hereby submits the following Separate Statement of Undisputed Material Facts ("UMF") and Supporting Evidence in support of its Motion for Summary Judgment or, Alternatively, for Summary Adjudication.

FACTS COMMON TO ALL ISSUES

GM's Undisputed Material Facts and Supporting Evidence	Plaintiff's Response and Supporting Evidence
1. The vehicle at issue is a model year 2019 GMC Sierra, VIN: 1GTU9BEDXKZ361894 ("Sierra") which Plaintiff Gregorio Garcia ("Plaintiff") bought on August 25, 2023. Evidence: Complaint, ¶ 8; Declaration of Cameron Major ("Major" Decl.), **Exhibit A** (Retail Installment Sale Contract).	
2. Plaintiff did not buy the Sierra new; Plaintiff bought it used, with 56,665 miles, from Price Ford of Turlock. Evidence: Major Decl. Ex. A.	
3. GM was not a party to the transaction between Plaintiff and Price Ford of Turlock. Evidence: Major Decl. Ex. A (not listing GM as a "Buyer," "Co-Buyer" or "Seller-Creditor").	
4. Plaintiff was not the Sierra's original owner(s). Evidence: Major Decl. Ex. A (marking Plaintiff's Sierra as "USED").	
5. Gold Star Buick GMC delivered the Sierra to its original owner on July 19, 2019, with 21 miles on its odometer. Evidence:	

Declaration of Bryan Jensen ("Jensen Decl."), **Exhibit B** (GM's "View Vehicle Delivery Information" report)	
6. In connection with that delivery to the Sierra's original owner, GM issued a New Vehicle Limited Warranty with bumper-to-bumper coverage for the earlier of 36 months or 36,000 miles and powertrain coverage for the earlier of 60 months or 60,000 miles. Evidence: Complaint, ¶ 9; Jensen Decl., at ¶¶ 7, 8; *id.* **Exhibit C** (2019 GMC Limited Warranty and Owner Assistance Information); *id.* **Exhibit D** (GM's "View Vehicle Summary" report).	
7. The Warranty's coverages began when Gold Star Buick GMC delivered the Sierra to its original owner(s) in July 2019. Evidence: Jensen Decl. Ex. C at pp. 2 & 4; *id.*, Ex. D at "Applicable Warranties."	
8. Importantly, GM did not issue or provide any new or additional warranty coverage to Plaintiff or the vehicle when Plaintiff bought the Sierra used in August of 2023; Plaintiff received only the balance of coverage under the Warranty that GM issued in July 2019. Evidence: Jensen Decl. Ex. D (listing July 19, 2019, as the "Start Date" for all applicable warranties for the Sierra).	

Dated: May 2, 2025

ERSKINE LAW, APC

CAMERON MAJOR, ESQ.
AUSTIN ABERNATHY, ESQ.
Attorneys for Defendant
GENERAL MOTORS LLC

PROOF OF SERVICE

I am employed in the County of Orange and my business address is 1592 N. Batavia St., Suite 1A, Orange, CA 92867. I am over the age of 18 years and I am not a party to this action. I am readily familiar with the practices of ERSKINE LAW, APC for the collection and processing of correspondence for mailing with the United States Postal Service. Such correspondence is deposited with the United States Postal Service the same day in the ordinary course of business.

On May 5, 2025, I served the foregoing document(s), bearing the title(s): **SEPARATE STATEMENT OF UNDISPUTED FACTS SUPPORTING GENERAL MOTORS LLC'S MOTION FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, FOR SUMMARY ADJUDICATION** on the interested parties in the action as follows:

[X] by placing [] the **original** [X] a **true copy** thereof enclosed in a sealed envelope addressed as follows:

QUILL & ARROW, LLP
Kevin Y. Jacobson, Esq.
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Siyun Yang, Esq.
syang@quillarrowlaw..com
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[] (**BY MAIL SERVICE**) I placed such envelopes for collection and to be mailed on this date following ordinary business practices.

[] **(BY PERSONAL SERVICE**) I caused to be delivered such envelope by hand to the office of the addressee.

[] (**BY FACSIMILE**) The document stated herein was transmitted by facsimile transmission and the transmission was reported as complete and without error. A transmission report was properly issued by the transmitting facsimile machine and a copy of said transmission report is attached to the original proof of service indicating the time of transmission.

[] (**BY NEXT DAY DELIVERY**) I caused to be delivered such envelope by hand to the office of the addressee.

[X] (**BY E-MAIL)** I served the above-mentioned document via electronic transmission per agreement of the parties.

[X] (**State**) I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

[] (**Federal**) I declare under penalty of perjury that I am employed by a member of the Bar of this Court; at whose direction this service is made.

Executed on May 5, 2025, at Orange, CA.

Signed: Jerry Obando
Jerry Obando, Paralegal